

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 22, Honorable Beth McGowen Presiding

Farris Bryant, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: (408) 882-2340

To contest a tentative ruling, you must:

1. Call (408) 808-6856 before 4:00 P.M. and leave a voicemail message containing the information described below, and
2. Notify the other side before 4:00 P.M. that you will appear at the hearing to contest the tentative ruling.

In the voicemail message, please state your case name, case number, the name of the attorney, who you represent (Plaintiff or specific defendant) and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested.

PLEASE NOTE:

- If you do not notify the Court and/or opposing side as required by California Rule of Court, rule 3.1308(a)(1) and Civil Local Rule 8(E), the Court will not hear argument and the tentative ruling will be adopted even if all parties appear at the hearing.
- Sending an email to the department or to the Complex Clerk will no longer suffice to constitute notice to the Court of the need for a hearing regarding a tentative ruling.

Court Reporters are not provided. Please consult our Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely.

DATE: Friday, August 7, 2026 TIME: 9:00 AM

**PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	22CV394446	Jacob v. Western Digital Technologies, Inc., et al. (PAGA)	Motion: Settlement Approval is GRANTED Click on line 1 for tentative ruling
LINE 2	23CV421594	Aiello v. Arnold Hospitality, Inc., et al. (Class Action)	Hearing: Motion For Final Approval is GRANTED Click on line 2 for tentative ruling
LINE 3	24CV434415	Agbalog v. Redwood Electric Group, Inc. (Class Action)	Hearing: Demurrer is SUSTAINED in part and OVERRULED in part Click on ine 3 for tentative ruling
LINE 4	25CV461660	The People of the State of California vs Edgewell Personal Care, LLC	Motion: Compel is GRANTED Click on line 4 for tentative ruling
LINE 5	21CV382581	Shivaie v. Elwyn, et al. (Class Action)	Motion: Final Approval is GRANTED Click on line 5 for tentative ruling
LINE 6	20CV369179	Hone Capital LLC, et al. v. Wu, et al. (Lead Case; Consolidated With 20CV369308)	Motion: Withdraw as attorney is GRANTED Click on line 6 for tentative ruling
LINE 7	22CV394446	Jacob v. Western Digital Technologies, Inc., et al. (PAGA)	Conference: Further Case Management
LINE 8	24CV449203	The People of the State of California vs TikTok Inc. et al	Conference: Further Case Management
LINE 9			
LINE 10			
LINE 11			
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LINE 13			

Calendar Line 1

Case Name: *Jacob v. Western Digital Technologies, Inc., et al.*

Case No.: 22CV394446

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Jester Jacob alleges defendants Western Digital Technologies, Inc. and Employnet, Inc. (collectively, “Defendants”) committed various wage and hour violations.

Before the Court is Plaintiff’s motion for approval of PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

I. BACKGROUND

According to the allegations of the operative Complaint, Plaintiff was employed by Defendants as a Device Manufacturing Technician from approximately March 23, 2021, to June 28, 2021. (Complaint, ¶ 7.) Throughout his employment, Plaintiff worked as a non-exempt, hourly paid employee. (*Ibid.*) Defendants failed to: pay all wages owed, including minimum and overtime wages; provide accurate wage statements; and pay wages upon separation of employment. Based on the foregoing, on February 17, 2022, Plaintiff initiated this action with the filing of the operative Complaint, which asserts a single cause of action for violation of PAGA.

Plaintiff now moves for an order approving the Joint Stipulation of PAGA Settlement and Release of Claims (the “Settlement”).

II. LEGAL STANDARD FOR APPROVING PAGA SETTLEMENT

Under PAGA, an aggrieved employee may bring a civil action personally and on behalf of other current or former employees to recover civil penalties for Labor Code violations. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 [2022 U.S. LEXIS 2940].) 75 percent of any penalties recovered go to the Labor and Workforce Development Agency (LWDA), leaving the remaining 25 percent for the employees. (*Ibid.*) PAGA is intended “to augment the limited enforcement capability of [LWDA] by empowering employees to enforce the Labor Code as representatives of the Agency.” (*Id.* at p. 383.) A judgment in a PAGA action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. (*Id.* at p. 381.)

Labor Code section 2699, subdivision (1)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) “[C]lass certification is not required” in this context as in a class action. (*Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 (*Haralson*).)

Similar to its review of class action settlements, the Court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.*

(2021) 72 Cal.App.5th 56, 76–77 (*Moniz*).) It must make this assessment “in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Id.* at p. 77; see also *Haralson, supra*, 383 F. Supp. 3d at p. 971 [“when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public”], quoting LWDA guidance discussed in *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O’Connor*).)

The settlement must be reasonable in light of the potential verdict value. (See *O’Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-CV-02198-EMC) 2016 WL 5907869, at *8–9.)

III. PLAINTIFF’S INVESTIGATION, SETTLEMENT PROCESS, AND THE PARTIES’ AGREEMENT

On December 13, 2021, Plaintiff submitted written notice to the Labor and Workforce Development Agency (“LWDA”) and Defendants. On February 17, 2022, Plaintiff initiated the instant action. On January 11, 2023, the Court (Hon. Kulkarni) issued its order, which denied Defendants’ motion to compel arbitration. Defendants appealed the order and on September 17, 2024, the Court of Appeal issued its order, which affirmed the decision.

The parties engaged in formal discovery including Plaintiff’s requests for production of documents and interrogatories to Defendants. Defendants produced data relating to the size and scope of the group of aggrieved employees and information regarding the nature and scope of Plaintiff’s allegations.

On May 12, 2025, the parties attended mediation with Hon. Amy D. Hogue (Ret.), but the parties were unable to come to an agreement. On May 5, 2026, the parties attempted mediation with Judge Hogue for a second time. The parties did not reach an agreement, however, the settlement discussions facilitated by Judge Hogue continued thereafter and the parties agreed to this Settlement via acceptance of a mediator’s proposal. Subsequently, the parties worked to negotiate the terms currently before the Court.

Pursuant to the Settlement, Defendants will pay a non-reversionary gross settlement of \$350,000, which is comprised of \$116,666.67 in attorneys’ fees, up to \$26,000 in litigation costs, and \$10,000 in settlement administration costs. The net settlement amount (\$189,300.71) will be distributed 75% (\$141,975.53) to the LWDA and 25% (\$47,325.18) to “Aggrieved Employees,” who are defined as “[A]ll current and former non-exempt, hourly employees of Western Digital in California and/or current and former non-exempt, hourly employees of Employnet who were assigned to work at Western Digital in California during the PAGA Period [December 13, 2020 to June 5, 2021].” The average PAGA payment will be approximately \$29.41. Plaintiff will request a service award in the amount of \$10,000. Funds associated with checks uncashed after 180 days will be transmitted to the State Controller’s Unclaimed Property Fund in the name of the Aggrieved Employee.

In exchange for settlement, Aggrieved Employees will release:

[A]ll claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts and allegations in the Operative Complaint and PAGA Notice that occurred during the PAGA Period.

The release is appropriately tailored to the allegations at issue, and does not release any claims other than those for PAGA penalties. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 537; *Moniz, supra*, 72 Cal.App.5th at p. 82 [release of “all known and unknown claims under PAGA ... that were or could have been pled based on the allegations of the Complaint” was appropriately approved].)

IV. DISCUSSION

A. Potential Verdict Value

In the Complaint, Plaintiff alleges failed to pay wages, including minimum and overtime wages, failure to pay wages upon termination, and failure to provide accurate wage statements. Plaintiff’s counsel estimated that, if Plaintiff was to prevail on the merits and apply the standard penalty of \$100, Defendants’ maximum exposure would be \$1,856,700.

The parties dispute whether time spent in COVID-19 screenings constitute hours worked under California law. Plaintiff also alleges a derivative wage statement violation. Defendants asserted that a substantial reduction in potential PAGA penalties was warranted because the alleged violations were minor, if at all; and Aggrieved Employees did not suffer substantial economic harm as a result of the alleged violations. Plaintiff’s counsel considered the aforementioned factors and the fact that courts routinely award far less than the statutory maximum amount of civil penalties.

The gross settlement amount represents approximately 18.85% of the maximum exposure. This is within the percentage range typically approved by courts. (See *Cavazos v. Salas Concrete, Inc.* (E.D. Cal., Feb. 18, 2022, No. 1:19-cv-00062-DAD-EPG) 2022 U.S. Dist. LEXIS 30201, at *41-42 [citing cases approving settlements in the range of 5 to 35 percent of the maximum potential exposure].)

Given this, as well as the risks attendant to proceeding to trial, Defendants’ defenses and the likelihood that PAGA penalties would be significantly reduced in line with numerous appellate decisions, the Court finds that the proposed settlement is fair to those affected and is genuine, meaningful, and reasonable in light of the statute’s purposes.

B. Attorneys’ Fees

While the PAGA statute does not expressly require judicial review of claimed attorney fees, the Court believes it cannot adequately fulfill its statutory duty to review the penalties associated with PAGA settlements without also considering attorney fees. The Court thus finds that it must scrutinize the attorney fee arrangement associated with a PAGA settlement. This is consistent with the observation of many courts that PAGA claims are analogous to “*qui tam*” suits like those under the federal False Claims Act: when reviewing settlements of *qui tam* claims, courts should and do consider any associated attorney fee arrangement. (See *U.S. v. Texas Instruments Corp.* (9th Cir. 1994) 25 F.3d 725, 728

[attorney fee award must be considered by the trial court as part of its review of the “entire settlement arrangement”].)

As articulated above, Plaintiff seeks a fee award of \$116,666.67 in attorneys’ fees. Plaintiff’s counsel lodestar figure is \$214,165.00 based on 305.1 hours at billing rates of \$650 to \$900 per hour, resulting in a negative multiplier of 0.54. This is below the range of multipliers that courts typically approve. (See *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal.5th 480, 488, 503–504 (*Laffitte*) [trial court did not abuse its discretion in approving fee award of 1/3 of the common fund, cross-checked against a lodestar resulting in a multiplier of 2.03 to 2.13]; *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 255 [“[m]ultipliers can range from 2 to 4 or even higher”]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court’s own survey of large settlements finding “a range of 0.6–19.6, with most (20 of 24, or 83%) from 1.0–4.0 and a bare majority (13 of 24, or 54%) in the 1.5–3.0 range”].)

Here, given the work performed by Plaintiff’s counsel, and because the requested multiplier sought is below the range of multipliers regularly approved by California courts in similar actions and that it is supported by Plaintiff’s counsel’s declarations, the Court finds counsel’s requested fee award is reasonable and therefore it is approved.

C. Plaintiff’s Service Award, Other Costs and Expenses

Plaintiff requests a Class Representative Enhancement payment of \$10,000.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29.)

Plaintiff submitted a declaration in support of the request. Plaintiff states he has spent approximately 35 hours on the instant matter, which includes: meeting with Plaintiff’s counsel to discuss the facts involved in this case; gathering and reviewing documents related to the case; reviewing the complaint and other documents; communicating with counsel and providing information; and reviewing and signing the Settlement. (Plaintiff’s Declaration (“Decl.”), ¶ 7.) Plaintiff further states that he considered the personal and professional risk of

participating in this action. (Plaintiff's Decl., ¶¶ 8-9.) The Court finds Plaintiff is entitled to a service award and the amount requested is reasonable, therefore the request is approved.

Plaintiff's counsel requests litigation costs in the amount of \$24,032.62. This is supported by the declaration of Plaintiff's counsel and it is below the \$26,000.00 provided for in the Settlement. Thus, this amount appears reasonable and is approved.

Administration costs of \$10,000 are also approved.

V. ADMINISTRATION PROCESS

Pursuant to the terms of the Settlement, within 30 days of Court approval of its terms, Defendant will provide settlement administrator Phoenix Class Action Administration Solutions ("Phoenix") with the Aggrieved Employees data and Defendant shall fully fund the gross settlement amount by transmitting the fund to Phoenix. Within 14 days of Defendants funding the gross settlement amount, Phoenix shall mail the checks for individual PAGA payments, the LWDA PAGA payment, the service award, the administration expenses payment, and the PAGA counsel and litigation costs payments. Phoenix shall conduct an address search for all Aggrieved Employees whose checks are returned and it must re-mail the check within 7 days. Funds associated with checks uncashed after 180 days shall be transmitted to the State Controller's Unclaimed Property Fund. These administrative procedures are appropriate and are approved.

VI. ORDER AND JUDGMENT

Plaintiff's motion for approval of the parties' PAGA settlement is GRANTED. The covered individuals are: All current and former non-exempt, hourly employees of Western Digital in California and/or current and former non-exempt, hourly employees of Employnet who were assigned to work at Western Digital in California during the PAGA Period.

Judgment shall be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiff and Aggrieved Employees shall take from the PAGA claim in their operative pleading only the relief set forth in the parties' settlement agreement and this order and judgment. The Court retains jurisdiction over the parties to enforce the terms of the PAGA settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **April 8, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, Plaintiff's counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted the *cy pres* recipient; the status of any unresolved issues; and any other matters appropriate to bring to the Court's attention. Counsel may appear at the compliance hearing remotely.

The Court will prepare the order.

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Calendar Line 2

Case Name: *Aiello v. Arnold Hospitality, Inc., et al*

Case No.: 23CV421594

This is a putative class action. Plaintiff Victoria Aiello alleges defendants Arnold Hospitality, Inc. committed various wage and hour violations.

Before the Court is Plaintiff's motion for final approval of settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

VII. BACKGROUND

According to the allegations of the Complaint, Defendant failed to: pay for all hours worked; provide meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; pay overtime wages; pay minimum wages; pay all wages earned upon termination; and fully reimburse for business expenses.

Based on the foregoing, Plaintiff initiated this action on August 25, 2023, which asserts the following causes of action: (1) violation of California Labor Code §§ 226.7, 512, subd. (a), 516, and 1198 (failure to provide meal periods); (2) violation of California Labor Code §§ 226.7, 516, 1198 (failure to authorize and permit rest periods); (3) violation of California Labor Code §§ 510, and 1998 (unpaid overtime); (4) violation of California Labor Code §§ 1182.12, 1194, 1197, 1197.1 and 1198 (unpaid minimum wages); (5) violation of California Labor Code §§ 201 and 202 (wages not timely paid upon termination); (6) violation of California Labor Code § 204 (failure to timely pay wages during employment); (7) violation of California Labor Code § 2802 (unreimbursed business expenses); (8) violation of California Business & Professions Code §§ 17200, *et seq.* (unlawful business practices); and (9) violation of Business & Professions Code §§ 17200, *et seq.* (unfair business practices). On February 6, 2026, the Court issued its order, which granted Plaintiff's motion for preliminary approval of class settlement.

Plaintiff now moves for final approval of the settlement.

VIII. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the

extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba*, *supra*, 91 Cal.App.4th at pp. 244–245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of relevant factors, depending on the circumstances of each case. (*Wershba*, *supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the “proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.*, citation and internal quotation marks omitted.) The trial court also must independently confirm that “the consideration being received for the release of the class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation.” (*Kullar*, *supra*, 168 Cal.App.4th at p. 129.) Of course, before performing its analysis the trial court must be “provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise.” (*Id.* at pp. 130, 133.)

IX. SETTLEMENT CLASS

Plaintiff requests certification of the following Class for settlement purposes.

All persons who worked for Defendant as non-exempt, hourly paid employees in the State of California at any time from January 1, 2022, through July 10, 2025.

Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court”

Section 382 requires the plaintiff to demonstrate by a preponderance of the evidence: (1) an ascertainable class and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, 332 (*Sav-On Drug Stores*).) “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.)

In the settlement context, “the court’s evaluation of the certification issues is somewhat different from its consideration of certification issues when the class action has not yet settled.” (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 93.) As no trial is anticipated

in the settlement-only context, the case management issues inherent in the ascertainable class determination need not be confronted, and the court's review is more lenient in this respect. (*Id.* at pp. 93–94.) But considerations designed to protect absentees by blocking unwarranted or overbroad class definitions require heightened scrutiny in the settlement-only class context, since the court will lack the usual opportunity to adjust the class as proceedings unfold. (*Id.* at p. 94.)

At preliminary approval, the Court provisionally certified the above-described Class, and it does not find any reasons to depart from that ruling at this time. Consequently, the Court will certify the Class for settlement purposes as requested.

X. TERMS AND ADMINISTRATION OF SETTLEMENT

The non-reversionary gross settlement amount is \$435,000. Attorneys' fees of up to one-third, which is approximately \$145,000, litigation costs of up to \$20,000, and administrative costs of up to \$8,500. Plaintiff will seek a \$10,000 Class representative service award.

The net settlement amount—which is estimated to be \$251,500—will be allocated to members of the Class, who are defined as “[a]ll persons who worked for Defendant as non-exempt, hourly paid employees in the State of California at any time from January 1, 2022, through July 10, 2025.” For tax purposes, 20% of each individual Class payment will be allocated to wages and 80% will be allocated to interests and penalties. Funds associated with checks uncashed after 180 days will be transmitted to the Justice Gap Fund. The average payment is \$746.29 and the highest is \$2,316.93.

In exchange for settlement, Class Members who do not opt out will release:

All claims, rights, demands, liabilities, and causes of action that are alleged in the operative Complaint, or which could have been asserted in the Action based upon the facts in the operative Complaint, including claims for violation of: (1) violation of California Labor Code §§ 226.7, 512, subd. (a), 516, and 1198 (failure to provide meal periods); (2) violation of California Labor Code §§ 226.7, 516, 1198 (failure to authorize and permit rest periods); (3) violation of California Labor Code §§ 510, and 1998 (unpaid overtime); (4) violation of California Labor Code §§ 1182.12, 1194, 1197, 1197.1 and 1198 (unpaid minimum wages); (5) violation of California Labor Code §§ 201 and 202 (wages not timely paid upon termination); (6) violation of California Labor Code § 204 (failure to timely pay wages during employment); (7) violation of California Labor Code § 2802 (unreimbursed business expenses); (8) violation of California Business & Professions Code § 17200, *et al.* (unlawful business practices); and (9) violation of Business & Professions Code §§ 17200, *et seq.* (unfair business practices).

The notice period has now been completed. Jarrod Salinas (“Salinas”), a case manager for settlement administrator Phoenix Settlement Administrators (“Phoenix”) submitted a declaration in support of the instant motion. On April 8, 2026, Phoenix received defense counsel provided Phoenix with the Class list. The Class list was processed and updated using the National Change of Address Database. On April 9, 2026, Class notices were mailed to 337 Class Members.

As of the date of Salinas's declaration, 30 Class notices have been returned by the post office. For those without a forwarding address, Phoenix performed a skip trace to locate new mailing addresses. A total of 20 addresses were re-mailing. A total of 10 Class notices were unable to be delivered because a better mailing address could not be found.

As of the date of Salinas's declaration, Phoenix has received 0 requests for exclusion and 0 objections. Consequently, there are 337 participating Class Members, which is approximately 100% of the Settlement Class. The average payment is \$746.29 and the highest is \$2,316.93.

Plaintiff requests \$8,500 for administration costs. This request is supported by Salinas's declaration. Thus, the amount is reasonable and therefore, it is approved.

At the preliminary approval, the Court found that the proposed settlement provides a fair and reasonable compromise to Plaintiff's claims. It finds no reason to depart from these findings now, especially considering that there are no objections. Therefore, the Court finds that the Settlement is fair and reasonable for the purposes of final approval.

XI. ATTORNEYS' FEES, LITIGATION COSTS, AND PLAINTIFF'S SERVICE AWARD

Class Counsel seeks a fee award of \$145,000 or one-third of the gross settlement amount, which is not an uncommon contingency fee in a wage and hour class action. Class Counsel provides a lodestar figure of \$175,913.50, based on 225.60 hours of work at billing rates ranging from \$600 to \$1,050 per hour resulting in a negative multiplier of 0.82. This is below the range of multipliers that courts typically approve. (See *Wershba, supra*, 91 Cal.App.4th at p. 255 ["[m]ultipliers can range from 2 to 4 or even higher"]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court's own survey of large settlements funding a range of 0.6-19.6, with most (20 to 24, or 83%) from 1.0-4.0 and a bare majority (13 of 24, or 54%) in the 1.5-3.0 range].)

"While the percentage method has been generally approved in common fund cases, courts have sought to ensure the percentage fee is reasonable by refining the choice of a percentage or by checking the percentage result against the lodestar-multiplier calculation." (*Laffitte v. Robert Half Intern, Inc.* (2016) 1 Cal.5th 480, 495 (*Laffitte*).) Applying the latter approach,

[T]he percentage-based fee will typically be larger than the lodestar based fee. Assuming that one expects rough parity between the results of the percentage method and the lodestar method, the difference between the two computed fees will be attributable solely to a multiplier that has yet to be applied. Stated another way, the ratio of the percentage-based fee to the lodestar-based fee implies a multiplier, and that implied multiplier can be evaluated for reasonableness. If the implied multiplier is reasonable, then the cross-check confirms the reasonableness of the percentage-based fee; if the implied multiplier is unreasonable, the court should revisit its assumptions. (*Laffitte, supra*, 1 Cal.5th at p. 496, quoting Walker & Horwich, *The Ethical Imperative of a Lodestar Cross-check: Judicial Misgivings About "Reasonable Percentage" Fees in Common Fund Cases* (2005) 18 Geo. J. Legal Ethics 1453, 1463.) As described by the California Supreme Court, "[i]f the multiplier calculated by means of a lodestar crosscheck is

extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Laffitte, supra*, 1 Cal.5th at 505.)

Here, the multiplier sought by Class Counsel is below the range California courts typically award, and it is supported by the percentage cross-check and Class Counsel’s declarations. (See Declaration of Mark Yablonovich (“Yablonovich Decl.”), ¶ 27; Declaration of Raul Perez (“Perez Decl.”), ¶ 18.) Thus, the Court finds Class Counsel’s requested fee award is reasonable.

Class Counsel also seeks \$16,629.01 in litigation costs, which is below the \$20,000 allowed for in the Settlement. The request is supported by Class Counsel’s declarations. (See Yablonovich Decl., ¶ 29; Perez Decl., ¶ 23.) This amount is reasonable and thus, it is approved.

Plaintiff requests a Class Representative Enhancement payment of \$10,000.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29.)

Plaintiff submitted a declaration in support of her request. She states she spent between 25 and 35 hours assisting her counsel in this matter, which included communicating with counsel; providing information; and reviewing documents. (Plaintiff’s Declaration (“Decl.”), ¶¶ 6-10.) She also considered the personal and professional risks of participating in this action. (Plaintiff’s Decl., ¶ 4.) The Court finds Plaintiff is entitled to a service award and the amount requested is reasonable. Thus, Plaintiff’s request for a service award is approved.

XII. CONCLUSION

In accordance with the above, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiff’s motion for final approval is GRANTED. The following Class is certified for settlement purposes only:

All persons who worked for Defendant as non-exempt, hourly paid employees in the State of California at any time from January 1, 2022, through July 10, 2025.

Judgment will be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiff and the members of the Class will take from the operative complaint only the relief set forth in the settlement agreement and this order and judgment. Pursuant to Rule 3.769(h) of the California Rules of Court, the Court will retain jurisdiction over the parties to enforce the terms of the settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **April 1, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, class counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted pursuant to Code of Civil Procedure section 384, subdivision (b); the status of any unresolved issues; and any other matters appropriate to bring to the Court's attention. Counsel shall also submit an amended judgment as described in Code of Civil Procedure section 384, subdivision (b). Counsel may appear at the compliance hearing remotely.

The Court will prepare the order.

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Calendar Line 3

Case Name: *Agbalog, et al. v. Redwood Electric Group, Inc., et al.*

Case No.: 24CV434415

This is a putative wage and hour class action. Plaintiffs Pachuco Agbalog, Christopher Aragon, and Jaramie McKinney (collectively, “Plaintiffs”) allege defendant Redwood Electronic Group, Inc. committed various wage and hour violations.¹

Before the Court is Defendant’s demurrer to Plaintiffs’ third amended complaint (“TAC”), which is opposed. As discussed below, the Court SUSTAINS the demurrer as to the class allegations and OVERRULES as to causes of action one through eight.

XIII. BACKGROUND

According to the allegations of the operative TAC, Plaintiffs were employed by Defendant as hourly-paid, non-exempt employees as follows: Agbalog (February 2021 to June 2021); Aragon (March 2021 to May 2021); and McKinney (December 2020 to March 2023). (TAC, ¶¶ 20-22.) Defendant failed to: pay wages including overtime and minimum wages; provide meal and rest periods or compensation in lieu thereof; provide complete and accurate wage statements; reimburse necessary business expenses; and timely pay final wages.

Based on the foregoing, Plaintiff Agbalog initiated the instant action on April 4, 2024, with the filing of the complaint, which asserted the following causes of action: (1) violation of Labor Code §§ 510 and 1198 (unpaid overtime); (2) violation of Labor Code §§ 226.7 and 512, subd. (a) (unpaid meal period premiums); (3) violation of Labor Code § 226.7 (unpaid rest premiums); (4) violation of Labor Code §§ 1194, 1197, and 1197.1 (unpaid minimum wages); (5) violation of Labor Code §§ 201 and 202 (final wages not timely paid); (6) violation of Labor Code § 204 (wages not timely paid during employment); (7) violation of Labor Code § 226, subd. (a) (non-compliant wage statements); (8) violation of Labor Code § 1174, subd. (d) (failure to keep requisite payroll records); (9) violation of Labor Code §§ 2800 and 2802 (unreimbursed business expenses); and (10) violation of Business & Professions Code §§ 17200, *et seq.* On March 26, 2025, Plaintiff Agbalog filed the first amended complaint, which asserted the same causes of action and added Plaintiff Aragon to this action. On July 14, 2025, Plaintiffs filed the second amended complaint, which asserted the same causes of action and added Jeramie McKinney to this action.

Defendant filed a demurrer to and motion to strike portions of the second amended complaint and on January 2, 2026, the Court (Hon. Adams) issued its order (the “Order”), which sustained the demurrer in part, overruled in part, and denied the motion to strike. Consequently, on January 6, 2026, Plaintiffs filed the operative TAC, which asserts the following causes of action: (1) violation of Labor Code §§ 510 and 1198 (unpaid overtime); (2) violation of Labor Code §§ 226.7 and 512, subd. (a) (unpaid meal period premiums); (3) violation of Labor Code § 226.7 (unpaid rest premiums); (4) violation of Labor Code §§ 1194, 1197, and 1197.1 (unpaid minimum wages); (5) violation of Labor Code §§ 201 and 202 (final wages not timely paid); (6) violation of Labor Code § 226, subd. (a) (non-compliant wage

¹ Per the Court’s February 23, 2026 order, Plaintiff Aragon has been dismissed as a class representative, dismissed his individual claims with prejudice and representative claims without prejudice.

statements); (7) violation of Labor Code §§ 2800 and 2802 (unreimbursed business expenses); and (8) violation of Business & Professions Code §§ 17200, *et seq.*

XIV. REQUEST FOR JUDICIAL NOTICE

In support of their opposition, Plaintiffs request judicial notice of the following items:

- (1) The Order: Exhibit A; and
- (2) The Instant demurrer: Exhibit B.

Evidence Code section 452, subdivision (d), permits judicial notice of records of any court of this state or any court of record of the United States or of any state of the United States. (Code Civ. Proc., § 452, subd. (d).) Exhibits A-B are court records, therefore they are proper items of judicial notice. Thus, the Court takes judicial notice of the existence of the documents and the legal effect of the court orders but does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*).) Accordingly, Plaintiffs' request for judicial notice is GRANTED.

XV. OVERSIZED MEMORANDUM

In the Order, the Court found that Defendant filed an oversized memorandum and reminded defense counsel to "comply with court rules and procedures with respect to future filings." (Order, p. 3:10-19.)

Plaintiffs argue they are prejudiced by "Defendant's willingness to make arguments in support of its position while Defendant repeatedly violates California court rules." (Plaintiffs' Opposition ("Opp."), p. 10:15-16.)

"Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages." (Cal. Rules of Court, rule 3.113(d).) "A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper." (Cal. Rules of Court, rule 3.1113 (g).) The court has discretion to refuse to consider a late-filed paper. (Cal. Rules of Court, rule 3.1300(d).)

Here, Defendant filed and served its memorandum of points and authorities ("MPA"), which is approximately 17 pages when excluding the cover page and table of contents. This is a violation of the Rules of Court. Defendant acknowledges that it filed an oversized MPA without permission from the court. (Reply, pp. 10:25-11:8.) Plaintiffs fail to state any supporting facts regarding the purported prejudice. Thus, as in the Order, the Court finds this violation is minimal and there is no prejudice to Plaintiffs as they were able to timely file and serve their substantive opposition papers.. However, defense counsel is admonished for failure to follow procedural rules and warned that failure to do so in the future may result in a different outcome. Accordingly, the Court will turn to the merits of the motion

XVI. DEMURRER

Defendant demurs to each cause of action on the grounds that it fails to state a cause of action upon which relief can be granted. (Code Civ. Proc., § 430.10, subd. (e).)

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

Defendant argues that Plaintiffs again fail to allege sufficient facts to support their claims.

In the Order, the Court stated,

As to the first, second, third, fourth, fifth, and ninth causes of action, Plaintiff simply parroted the language of the statute with respect to each claim...such pleading would be accepted, as stated above. If Plaintiffs had also alleged underlying facts in support of these allegations. The SAC however is devoid of facts to establish these violations under the Labor Code. While this court is not aware of any heightened pleading standard applicable to these claims, Plaintiffs, at a minimum, must allege some supporting facts to state valid causes of action under the Labor Code. Having failed to do so, the demurrer is sustainable on this ground but Plaintiffs will be given an opportunity for further leave to amend.

(The Order, p. 9:1-9.)

1. Class Allegations²

Defendant argues that Plaintiffs’ class allegations do not meet California’s minimum pleading standard.

The Court sustained the demurrer to the SAC as to the class action allegations and it explained as follows,

[T]he Court finds that Plaintiffs’ class allegations are compromised almost entirely of conclusions of fact or law that cannot overcome demurrer. Although

² Defendant requests the Court strike Plaintiffs’ class allegations, however, it failed to file a motion to strike. Thus, the request is improper.

Plaintiffs have included an extensive list of ‘common questions of law and fact,’ there are no actual facts explaining why these questions are suitable to class resolution in this case. The case is true of the allegations regarding typicality and adequacy, which simply conclude without explanation that ‘Plaintiffs’ claims are typical of the class’ and that ‘Plaintiffs will fairly and adequately protect the interests of the other class members.’ But under *Blank* [citing *Blank v. Kirwan* (1985) 39 Cal.3d 1311, 318], more is required for each of these factors if Plaintiffs wish to litigate this case as a class action. For example, as to commonality and predominance, Plaintiffs must at least plead facts to demonstrate why ‘the defendant’s liability can be determined by facts common to all members of the class’ in a manner that is something more than just a list of generic questions applicable in almost any wage and hour suit. [citing *Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916.]]. (Order, p. 7:6-21.)

“It is often premature for a trial court to make determinations pertaining to class suitability on demurrer. Rather, ‘all that is normally required for a complaint to survive demurrers to the propriety of class litigation is that the complaint allege facts that tend to show: (1) an ascertainable class of plaintiffs, and (2) questions of law and fact which are common to the class.’” (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 487.) However, when it is clear from the face of the complaint “that there is no reasonable possibility that the plaintiff could establish a community of interest among the potential class members and that individual issues predominate over common questions of law and fact,” a demurrer is proper. (*Silva v. Block* (1996) 49 Cal.App.4th 345, 349.)

Defendant again argues Plaintiffs fail to: state facts to demonstrate that commonality and predominance are not mere speculation; state facts to show their claims are typical of the class; and fail to state facts that establish they are adequate class representatives. (MPA, pp. 16:11-19:27.)

The “community-of-interest” requirement encompasses three factors: (1) predominant questions of law or fact, (2) class representatives with claims or defenses typical of the class, and (3) class representatives who can adequately represent the class. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326 (*Sav-On Drug Stores*).) For the first community of interest factor, “[i]n order to determine whether common questions of fact predominate the trial court must examine the issues framed by the pleadings and the law applicable to the causes of action alleged.” (*Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916 (*Hicks*).)

Plaintiffs reassert the same allegations and add the following purportedly common questions of law or fact:

(j) whether Defendants engaged in unfair business practices in violation of California Business & Professions Code section 17200, et seq.;

(k) the appropriate amount of damages, restitution, and/or monetary penalties resulting from Defendants’ violation of California law; and

(l) whether Plaintiffs and the other class members are entitled to compensatory damages.

(TAC, ¶ 18(j)-(l).)

Here, the only changes made to Plaintiffs' class allegations section was the addition of paragraph 18(j)-(l). In the Order, the Court stated, "[a]lthough Plaintiffs have included an extensive list of 'common questions of law and fact,' there are no actual facts explaining why these questions are suitable to class resolution in this case." (Order, p. 7:7-9.) The class allegations do not incorporate any other allegations and the additional purported common questions of law or fact do not address the deficiency identified by the Court. Thus, Plaintiffs fail to offer any actual facts as to why these questions are suitable for class resolution in this case.

Next, Defendant argues Plaintiffs fail to state facts that show their claims are typical of the class.

The typicality requirement is meant to ensure that the class representative is able to adequately represent the class and focus on common issues. It is only when a defense unique to the class representative will be a major focus of the litigation, or when the class representative's interests are antagonistic to or in conflict with the objectives of those she purports to represent that denial of class certification is appropriate. But even then, the court should determine if it would be feasible to divide the class into subclasses to eliminate the conflict and allow the class action to be maintained.

(*Medraza v. Honda of North Hollywood* (2008) 166 Cal. App. 4th 89, 99, internal citations, brackets, and quotation marks omitted.)

In the Order, the Court specifically stated that more was required with regard to typicality and adequacy, if Plaintiffs wished to litigate this case as a class action. (See Order, p. 7:17-20 ["there are not actual facts explaining why these questions are suitable to class resolution in this case. The same is true of the allegations regarding typicality and adequacy, which simply conclude without explanation that 'Plaintiffs' claims are typical of the class' and that 'Plaintiffs will fairly and adequately protect the interests of the other class members.' But under *Blank* [citing *Blank v. Kirwan* (1985) 39 Cal.3d 1311, 318], more is required for each of these factors if Plaintiffs wish to litigate this case as a class action."].)

Here, Plaintiffs allege, "Typicality: Plaintiffs' claims are typical of all other class members' as demonstrated herein. Plaintiffs will fairly and adequately protect the interests of the other class members with whom he has a well-defined community of interest." (TAC, ¶ 17(b).) As noted above, these allegations are unchanged from the allegations the Court deemed insufficient in the SAC. Consequently, the TAC fails to state sufficient facts to allege typicality.

Similarly, Plaintiffs' allegations regarding adequacy are unchanged. The Court deemed these allegations insufficient in the SAC. Plaintiffs fail to offer any argument in opposition. Thus, Plaintiffs fail to state sufficient facts to support typicality.

Based on the foregoing, Plaintiffs fail to allege sufficient facts to establish a community of interest to support class treatment. (See *Sav-On Drug Stores*, *supra*, 34 Cal.4th at p. 326.) Plaintiffs request leave to amend, however, they fail to specify *how* they can amend. (See *Camsi IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542 (*Camsi IV*) ["absent an effective request for leave to amend in specified ways," it is an abuse of discretion to deny leave to amend "only if a potentially effective amendment were both apparent and

consistent with the plaintiff's theory of the case"]; *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 (*Goodman*) ["Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading"], quoting *Cooper v. Leslie Salt Co.* (1969) 70 Cal.2d 627, 636 (*Cooper*); *Hendy v. Losse* (1991) 54 Cal.3d 723, 742 (*Hendy*) ["the burden is on the plaintiff... to demonstrate the manner in which the complaint might be amended"].)

Accordingly, Defendant's demurrer as to the class allegations is SUSTAINED WITHOUT LEAVE TO AMEND.

2. First Cause of Action-Violation of Labor Code §§ 510 and 1198 (Unpaid Overtime)

Defendants argue Plaintiffs fail to allege facts to support this claim. (MPA, p. 20:27-28.)

Labor Code section 510, provides, "[e]ight hours of labor constitutes a day's work. Any work in excess of eight hours in one workday and any work in excess of 40 hours in any one workweek and the first eight hours worked on the seventh day of work in any one workweek shall be compensated at the rate of no less than one and one-half times the regular rate of pay for an employee." (Lab. Code § 510, subd. (a).) Labor Code section 1198, provides, "[t]he maximum hours of work and the standard conditions of labor fixed by the commission shall be the maximum hours of work and the standard conditions of labor for employees. The employment of any employee for longer hours than those fixed by the order or under conditions of labor prohibited by the order is unlawful." (Lab. Code § 1198.)

Plaintiffs allege that during the relevant time period, Plaintiffs worked in excess of 8 hours in a day, and/or in excess of 40 hours in a week, which included off-the-clock at the direction of Defendants, including attending to and managing deliveries, general electric work, electrical installations, unloading delivery trucks, inventory of delivery trucks, electrical intakes, cleaning job sites, material handling, and material management. (TAC, ¶ 52.) Plaintiffs further allege they were usually scheduled to work 40 hours per week but they performed work related duties on a consistent basis in excess of 40 hours per week due to disorganization and understaffing by Defendant. (*Ibid.*) Plaintiffs also allege they were not compensation for their off-the-clock work that exceeded the regularly scheduled 8 hours on a consistent basis, which compensation at an overtime rate. (*Ibid.*) As noted in the Order, the Court is not aware of any heightened pleading standard applicable to wage and hour claims nor does Defendant provide any such authority. (See Order, p. 9:5-6.) Based on the foregoing, the Court finds that Plaintiffs allege more than conclusory allegations.

Accordingly, Defendant's demurrer to the first cause of action is OVERRULED.

3. Second Cause of Action-Violation of Labor Code §§ 226.7 and 512, subd. (a) (Unpaid Meal Period Premiums); and Third Cause of Action-Violation of Labor Code § 226.7 (Unpaid Rest Premiums)

Defendant argues that Plaintiffs fail to allege the "requisite specific facts" to state the meal and rest period claims. (MPA, p. 21:7-9.)

Labor Code § 226.7, subd. (c), provides that "if an employer fails to provide an employee a meal or rest or recovery period in accordance with a state law, including, but not limited to, an applicable statute or applicable regulation, standard, or order...the employer shall pay the employee on additional hour of pay at the employee's regular rate of compensation...." Meal breaks are established by Labor Code § 512, subd. (a), which requires that employers provide employees working more than five hours with a meal period of not less than 30 minutes, and a second meal period for shifts exceeding 10 hours. (Lab. Code § 512, subd. (a).)

i. Unpaid Meal Premiums Claim

Plaintiffs allege that during the relevant time period, they were scheduled to work for a period of time in excess of 6 hours, and they were required to work for periods longer than 5 hours without an uninterrupted meal period of not less than 30 minutes. (TAC, ¶ 62.) They further allege that Plaintiffs' meal periods were missed, shortened, and/or interrupted because Defendants required them to perform work duties during their legally mandated lunch breaks and the work duties included, attending to and managing deliveries, general electric work, electrical installations, unloading delivery trucks, inventory of delivery trucks, electrical intakes, cleaning job sites, material inspection, and material management. (TAC, ¶ 63.) Often the situations would arise in the middle of Plaintiffs' lunch breaks and under Defendant's direction, Plaintiffs were required to work through their legally mandated lunch, without compensation. (*Ibid.*) Thus, Plaintiffs allege they were non-exempt employees, and that their meal breaks were interrupted, not timely provided, or that they were not completely relieved of their job duties during breaks. (See TAC, ¶¶ 19-22, 63-66.) Based on the foregoing, Plaintiffs allege sufficient facts to state this claim.

Accordingly, Defendant's demurrer to the second cause of action is OVERRULED.

ii. Unpaid Rest Period Premiums Claims

Plaintiffs' allegations are as follows: Defendants required Plaintiffs to work three and a half or more hours without authorizing or permitting a ten-minute rest period per each 4 hour period or major fraction thereof worked. (TAC, ¶ 73.) During the relevant time period, Plaintiffs rest periods were missed, shortened, late, and/or interrupted because Defendants required them to perform work duties during their legally mandated rest breaks and the work duties included, attending to and managing deliveries, general electric work, electrical installations, unloading delivery trucks, inventory of delivery trucks, electrical intakes, cleaning job sites, material inspection, and material management. (TAC, ¶ 74.) Plaintiffs were often interrupted by Defendant during their rest period and required to fulfill work duties such as answering questions pertaining to the job site, leaving their rest area to continue their work, or attend to any deliveries that arrived at the job site, without compensation. (*Ibid.*) Based on the foregoing, Plaintiffs allege sufficient facts to state this claim.

Accordingly, Defendant's demurrer to the third cause of action is OVERRULED.

4. Fourth Cause of Action-Violation of Labor Code §§1194, 1197, and 1197.1 (Unpaid Minimum Wages)

Defendant argues Plaintiffs fail allege facts specific to them or their personal experiences. (MPA, p. 22:1-6.) However, Defendant's reliance on federal authorities is unavailing because they applied the federal pleading standard, which is not applicable here.

California's minimum wage law gives employees a civil cause of action against their employer for unpaid minimum wages. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 49 (*Martinez*, 49 Cal.4th 35, 49 (*Martinez*); *Flowers v. Los Angeles County Metropolitan Transportation Authority* (2015) 243 Cal.App.4th 66, 74 (*Flowers*).) Section 1194 provides in part: "Notwithstanding any agreement to work for a lesser wage, any employee receiving less than the legal minimum wage or the legal overtime compensation applicable to the employee is entitled to recover in a civil action the unpaid balance of the full amount of this minimum wage or overtime compensation, including interest thereon, reasonable attorney's fees, and costs of suit." (Lab. Code § 1194, subd. (a).) Labor Code section 1197, provides, "[t]he minimum wage for employees fixed by the commission or by any applicable state or local law, is the minimum wage to be paid to employees, and the payment of a lower wage than the minimum so fixed is unlawful." (Lab. Code § 1197.) Labor Code section 1197.1 provides for a \$100 penalty for the initial pay period in which an employee is underpaid and \$250 for the subsequent pay periods in which the employee is underpaid. (See Lab. Code § 1197.1, subd. (a).)

Plaintiffs allege that Defendants failed to pay minimum wage to Plaintiffs, pursuant to Labor Code section 1194, 1197, 1197.1. (TAC, ¶ 81.) The failure to pay minimum wages includes Defendants' effective payment of zero dollars per hour for hours Plaintiffs worked off-the-clock performing work duties including but not limited to, attending to and managing deliveries, general electric work, electrical installations, unloading delivery trucks, inventory of delivery trucks, electrical intakes, cleaning job sites, material handling and material management, electrical intakes, and team management. (*Ibid.*) Plaintiffs spent time performing work duties off-the-clock which lasted several minutes in duration through their employment with Defendants, on a weekly basis. (*Ibid.*) Here, Plaintiffs allege facts specific to their own experience. Based on the foregoing, Plaintiffs allege sufficient facts to state this claim.

Accordingly, Defendant's demurrer to the fourth cause of action is OVERRULED.

5. Fifth Cause of Action-Violation of Labor Code §§ 201 and 202 (Final Wages Not Timely Paid)

Defendant argues Plaintiffs fail to allege sufficient facts to state this claim—particularly facts specific to them. (MPA, p. 22:23-28.) Defendant again relies on federal authority, which applied the federal pleading standard. Moreover, as explained below, Plaintiffs state more than conclusory allegations.

Labor Code section 201, provides, "[i]f an employer discharges an employee, the wages earned at the time of discharge are due and payable immediately." (Lab. Code § 201, subd. (a).) Labor Code section 202, provides, "[i]f an employee . . . quits his or her employment, his or her wages shall become due and payable not later than 72 hours thereafter, unless the employee has given 72 hours previous notice of his or her intention to quit, in which case the employee is entitled to his or her wages at the time of quitting." (Lab. Code § 202, subd. (a).)

Plaintiffs allege during the relevant time period, Defendants intentionally and willfully failed to pay Plaintiffs, who were discharged, their wages, earned and unpaid, immediately at

the time of their discharge. (TAC, ¶ 87.) Plaintiffs were not paid at the time of their discharge wages earned and unpaid throughout their employment, including but not limited to, minimum wages for time worked off-the-clock to perform work duties including attending to and managing deliveries, general electric work, electrical installations, unloading delivery trucks, inventory of delivery trucks, electrical intakes, cleaning job sites, material handling, and for unpaid meal and rest period premiums. (*Ibid.*) Based on the foregoing, Plaintiffs allege sufficient facts to state this claim.

Accordingly, Defendant's demurrer to the fifth cause of action is OVERRULED.

6. Sixth Cause of Action-Violation of Labor Code § 226, subd. (a) (Non-Compliant Wage Statements)³

Under Labor Code section 226, subd. (a), every employer must keep accurate records and furnish accurate itemized wage statements which show gross wages earner, total hours worked, net wages earned, and all applicable hourly rates with corresponding hours worked at each rate. (Lab. Code, § 226, subd. (a).)

Plaintiffs allege Defendants have intentionally and willfully failed to provide Plaintiffs with complete and accurate wage statements. (See TAC, ¶ 93.) They further allege that the deficiencies include but are not limited to: the failure to include the total number of hours worked by Plaintiffs and other class members. (*Ibid.*) Defendants had the information necessary to provide wage statements that accurately reflected the total number of hours worked and the actual gross and net wages earned, yet failed to do so on a systematic basis and instead provided wage statements that did not reflect the time worked off-the-clock or all meal and rest period premiums earned. (*Ibid.*)

Defendant argues that the claim fails because it is derivative of Plaintiffs' wage claims. This argument is unavailing as the demurrer has been overruled as to Plaintiffs' other wage claims. Defendant fails to assert any other argument as to this claim.

Accordingly, Defendant's demurrer to the sixth cause of action is OVERRULED.

7. Seventh Cause of Action-Violation of Labor Code §§ 2800 and 2802 (Unreimbursed Business Expenses)⁴

Defendant argues that Plaintiff cannot state this claim under their theories regarding personal cell phones usage for work and purchase of work boots. (MPA, pp. 24:8-25:22.)

"An employer shall indemnify his or her employee for all necessary expenditures or losses incurred by the employee in direct consequence of the discharge of his or her duties. (Lab. Code § 2802, subd. (a).) "The elements of a [section 2802(a)] cause of action, as delineated by the statutory language, are: (1) the employee made expenditures or incurred losses; (2) the expenditures or losses were incurred in direct consequence of the employee's discharge of his or her duties, or obedience to the directions of the employer; and (3) the

³ The Court overruled Defendant's demurrer to this claim. (See Order, p. 13:8-9.)

⁴ The Order sustained the demurrer to this claim in the SAC.

expenditures or losses were necessary.” (*Thai v. International Business Machines Corp.* (2023) 93 Cal.App.5th 364, 370 (*Thai*).)

Plaintiffs allege that they incurred necessary business-related expenses and costs in direct consequence of their obedience to the directions of Defendants throughout the duration of their employment that were not fully reimbursed by Defendants, including but limited to, the use of personal phones for business-related purposes and incurred costs to purchase clothing in order to comply with Defendants’ dress code. (TAC, ¶ 100.) By way of example, on a consistent basis, Plaintiffs used their personal cell phones to conduct work-related duties, such as making and receiving calls to their supervisor while off the clock. (*Ibid.*) By way of another example, Plaintiffs were required to purchase their own boots to be able to fulfill their work duties safely and adequately, and were never reimbursed for the purchase of work boots. (*Ibid.*)

Defendant argues that there is no claim under Labor Code section 2802 where there is no policy requiring employees to use their personal cell phones. (MPA, p. 25:2-3.) The Court is not persuaded by Defendant’s reliance on *Dugan v. Ashley Furniture Indus.* (C.D. Cal. Nov. 29, 2026) 2016 U.S. Dist. LEXIS 189011 and *Pavloff v. Cardinal Logistics Mgmt. Corp.* (October 7, 2020) 2020 U.S. Dist. LEXIS 221745 because those cases involved motions for class certification. There is no binding authority before the Court which requires Plaintiffs to allege the existence of a specific policy to sufficiently allege a claim under Labor Code section 2802. Plaintiffs allege they were not reimbursed for personal cell phone usage for work purposes which was a direct consequence of their obedience of Defendant’s directions. (See TAC, ¶ 100; see also *Cochran v. Schwan’s Home Service, Inc.* (2014) 28 Cal.App.4th 1137, 1145 [an employer has to reimburse an employee for the reasonable expense of the mandatory use of a personal cell phone].) Defendant challenges the sufficiency of the work boots theory, however, a demurrer does not lie to part of a cause of action. (See *Financial Corp. of America v. Wilburn* (1987) 189 Cal.App.3d 764, 778— “[A] defendant cannot demur generally to part of a cause of action;” see also *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682— “A demurrer does not lie to a portion of a cause of action;” *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 274— “A demurrer challenges a cause of action and cannot be used to attack a portion of a cause of action.”) As Plaintiffs allege sufficient facts to support the cell phone usage theory, they allege sufficient facts to state this claim. (See *Thai, supra*, 93 Cal.App.5th at p. 370.)

Accordingly, Defendant’s demurrer to the seventh cause of action is OVERRULED.

8. Eighth Cause of Action-Violation of Business & Professions Code §§ 17200, et seq

Plaintiffs allege Defendant’s conduct is unfair, unlawful, and harmful to Plaintiffs. (TAC, ¶ 104.)

The UCL defines ‘unfair competition’ to ‘mean and include any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising’ and any act prohibited by [Business and Professions Code] section 17500.” (*Searle v. Wyndham Int’l* (2002) 102 Cal.App.4th 1327, 1332-1333 (Searle) [internal citations omitted].) “Section 17200 ‘is not confined to anticompetitive business practices, but is also directed toward the public’s right to protection from fraud, deceit, and unlawful conduct. Thus, California courts have consistently interpreted the language of section 17200 broadly.’” (*South Bay Chevrolet v.*

General Motors Acceptance Corp. (1999) 72 Cal.App.4th 861, 877-878 [internal citations omitted].) “The statute prohibits ‘wrongful business conduct in whatever context such activity might occur.’” (*Searle, supra*, at 102 Cal.App.4th at p. 1333.)

Defendant argues this claim is derivative of the other claims and because those claims failed, so too should this one. (MPA, p. 26:17-18.) However, the demurrer has been overruled as to the other claims. Thus, Defendant’s argument as to the UCL claim is unavailing. Defendant fails to assert any other argument as to this claim.

Accordingly, Defendant’s demurrer to the seventh cause of action is OVERRULED.

XVII. CONCLUSION

Defendant’s demurrer SUSTAINED WITHOUT LEAVE TO AMEND as to the class allegations and it is OVERRULED as to causes of action one through eight.

The Court will prepare the order.

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Calendar Line 4

Case Name: *The People of the State of California v. Edgewell Personal Care, LLC*
Case No.: 25CV461660

This action arises from defendant Edgewell Personal Care, LLC's alleged violations of the Business and Professions Code.

Before the Court is Plaintiff The People of the State of California's ("Plaintiff" or the "People") motion to compel further responses and request for sanctions, which is opposed.⁵

As discussed below, the Court GRANTS Plaintiff's motion to compel further responses and Defendant shall provide code compliant responses within 20 days of the order.

XVIII. BACKGROUND

According to the allegations of the Complaint, Defendant owns more than 25 consumer product brands and operates with approximately 7,000 employees. (Complaint, ¶ 3.) In 2024, it generated over two billion dollars in net sales. (*Ibid.*) Defendant's brand portfolio includes Hawaiian Tropic and Banana Boat, which produce sunscreens and sun protection products (collectively, "sunscreens"), which are sold to California consumers online and at retail locations across California. (Complaint, ¶¶ 4-5.) Defendant is responsible for the manufacturing, packaging, marketing, distributing, and selling Hawaiian Tropic and Banana Boat sunscreens in California. (Complaint, ¶ 9.)

On July 3, 2018, Hawaii passed Senate Bill 2571, which prohibited the sale and distribution of sunscreens that contained oxybenzone and octinoxate in Hawaii. (Complaint, ¶ 35.) The purpose of the law was to preserve marine ecosystems including coral reefs and it went into effect on January 1, 2021. (Complaint, ¶¶ 36-37.) On February 23, 2020, and continuing thereafter, Defendants labeled and advertised the sunscreens as "reef friendly," "reef safe," or otherwise not harmful to reefs. (Complaint, ¶ 39.)

During the relevant period, Defendant labeled and advertised Hawaiian Tropic sunscreens with the phrase "reef friendly*" on the front and with the phrase "no Oxybenzone or Octinoxate" on the back. (Complaint, ¶ 40.) Thereafter, Defendant changed the label and advertising on the back of some or all Hawaiian Tropic sunscreens to state "Hawaii Compliant: No Oxybenzone or Octinoxate," instead. (Complaint, ¶ 41.) Similarly, during the relevant period, Defendant labeled and advertised Banana Boat sunscreen with the phrase "REEF FRIENDLY," above a drawing of a coral, with the phrase "Non Oxybenzone or Octinoxate" below. (Complaint, ¶ 42.) Defendants advertised the sunscreens in retail stores and their respective websites as "reef friendly." (Complaint, ¶ 43.)

Defendant failed to perform scientific studies or research on whether the active ingredients in its sunscreen were harmful to reefs before advertising them as "reef friendly," in fact, Defendant did not and does not possess any scientific substantiation for the "reef friendly" claim. (Complaint, ¶¶ 65-66.) The actual scientific evidence and public legislation supported the conclusion that the active ingredients were demonstrably harmful to reefs, including coral

⁵ In its reply, Plaintiff states that they withdraw their request for sanctions. (Reply, p. 3, fn. 1.)

reefs. (Complaint, ¶ 67.) Defendant was aware or reasonably should have known of the risk of harm to corals and marine life from the active ingredients. (Complaint, ¶ 69.) Defendant knew or should have known that the statements were false and misleading, and it failed to disclose to customers that the products contained chemicals that were harmful to reefs. (Complaint, ¶¶ 70-75.)

Based on the foregoing, on March 24, 2025, Plaintiff initiated this action with the filing of the Complaint, which asserts causes of action for: (1) violations of Business & Professions Code section 17500 (false advertising law); and (2) violations of Business & Professions Code section 17200 (unfair competition). On December 9, 2025, the Court (Hon. Adams) issued its order, which overruled Defendant's demurrer and denied its motion to strike.

XIX. MOTION TO COMPEL FURTHER RESPONSES

Initially, Plaintiff moved to compel further responses as to the first set of Requests for Production ("RFP), Nos. 4, 7, 16-17, 19-20, 33-34, 36-38, 41-50, 52, 54-55, 57-58, 61, 70, 72, 75, 80, 83, 84, and 103. However, on June 23, 2026, the parties filed their joint stipulation, which informed the Court that "the parties [met and conferred] regarding the outstanding issues in the instant motion and [informally resolved] almost all of their disagreements over the discovery requests at issue..." (Joint Stipulation, p. 2:14-16.) Thus, the only remaining dispute is RFP, No. 7.

A. Legal Standard

A party propounding a request for production may move for an order compelling a further response if it deems that a statement of compliance is incomplete, a representation of inability to comply is inadequate, or an objection is without merit. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 (*Kirkland*).) Good cause is established simply by a fact-specific showing of relevance. (*Id.* at 98.) If good cause is shown, the burden shifts to the responding party to justify any objections. (*Ibid.*)

B. Meet and Confer

Code of Civil Procedure section 2031.310, provides, the motion "shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310, subd. (b)(2).)

On August 6, 2025, Plaintiff served Defendant with the RFP, Set One and Special Interrogatories, Set One. (Motion, p. 6: 2-3; Declaration of Christopher Judge In Support of Motion, ("Judge Decl."). Exh. 2.) On September 5, 2025, Plaintiff received Defendant's responses and on September 18, 2025, Defendant provided verifications. (Motion, p. 6:9-10; Judge Decl., Exhs. 3-4.) On September 19, 2025, Plaintiff sent Defendant a meet and confer letter. (Motion, p. 6:10-11; Judge Decl., Exh. 5.) On October 7, 2025, the parties met and conferred via videoconference and on October 31, 2025, Defendant served unverified amended responses. (Motion, p. 6: 11-13; Judge Decl., Exhs. 6-7.)

On November 21, 2025, Plaintiff sent Defendant another meet and confer letter and after reaching an impasse, and on December 5, 2025, the parties attended an informal discovery conference (“IDC”) with Judge Charles Adams. (Motion, p. 6:15-17.) On December 11, 2025, following the IDC, Plaintiff sent another meet and confer letter to try and resolve the dispute. (Motion, p. 6: 17-18.) Plaintiff sent additional meet and confer letters on December 19, 2025, January 2, 2026, and January 21, 2026. (Motion, p. 6:18-21.) On January 26, 2026, Defendant provided verifications for its amended responses. (Motion, p. 6:22-23.) Defendant argues that it was informed, for the first time, during the June 11, 2026 meet and confer that Plaintiff was seeking a complete chemical formulation for each product, including the concentration of inactive ingredients, rather than the labels and active-ingredient concentrations described in the moving papers. (Defendant’s Opposition (“Opp.”), p. 3:4-9.) It appears the parties discuss RFP No. 7 several times, however, the request for targeted discovery on a subset of inactive ingredients was made on June 11, 2026. (See Harrison Declaration in Support of Defendant’s Opposition, Exh. E.) In response, Plaintiff asserts that it was Defendant’s second amended response, which made clear that Defendant was only going to produce the labels in response to RFP No. 7. (Reply, p. 6:1-3.) Based on the foregoing, it does not appear the parties demonstrate sufficient meet and confer efforts with regard to RFP No. 7 dispute specifically. However, given the circumstances, it does not appear that further efforts would have resolved the issue.

C. Procedural Argument

In its opposition, Defendant argues Plaintiff’s motion should be denied because the separate statement fails to comply with California Rule of Court 3.1345(c), which provides, in part: “The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” The separate statement must also include, “[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it[.]” (Cal. Rules of Court, rule 3.1345(c)(4).)

RFP No. 7, states, “DOCUMENTS sufficient to identify the formulations of each of YOUR chemical sunscreen products that had the phrase “reef friendly” on the label during the RELEVANT PERIOD, including the concentrations of the chemical UV filters.”

Here, the separate statement, provides,

Good cause exists to order Defendant to produce the requested documents. Defendant’s prior production, made almost three years ago, only included “mechanicals,” which are proofs of the labels with the false advertising. And although the “mechanicals” may have a “Drug Facts” section on the label depicted in the “mechanical, and that section includes a list of active ingredients and their percentage of the total product, Defendant only produced mechanicals for 52 of the 86 identified products with “reef friendly” on the label.

Identifying the active ingredients used by Defendant in each of the “reef friendly” products, and the corresponding percentage of those ingredients, is relevant to whether the product posed a risk of harm to reefs and the aquatic life in the reef environment. The formulations are relevant to that risk of harm posed by each product. Other evidence may tend to show that defendant knew, or

reasonably should have known, of the harm posed by one active ingredient, but not by another, and this knowledge or negligence may have changed over time as to certain ingredients. Therefore, the formulations of each product are relevant.
(Separate Statement, pp. 6:15-7:1.)

Here, RFP No. 7 requests documents sufficient to “identify the formulation...” without narrowing the request to active or inactive ingredients. In other words, the request encompasses active and inactive ingredient contained within the formulation and review of any other document is not necessary in order to determine the full request and full response. Thus, the Court finds that Plaintiff complied with Rule 3.1345(c).

D. Discussion

Defendant states that it served a second amended response to RFP No. 7 on June 30, 2026. (Opp., p. 5:3-4.)

In its second amended response to RFP No. 7, Defendant states,

EPC hereby incorporates by reference the General Objections as if fully set forth herein. EPC objects to this request and its defined term(s) pursuant to objections in the above section titled “Objections to Defined Terms,” and incorporates those objections herein. Subject to and without waiving these objections, EPC certifies that it has conducted a reasonable inquiry and will produce all documents sufficient to show all labels of EPC’s chemical sunscreen products that had the phrase “reef friendly” on the label during the RELEVANT PERIOD, which lists all ingredients and the concentration of all active ingredients.

(Declaration of Courtney Harrison, Exh A, p. 10:1-7.)

The second amended responses state that verification will follow, however, there is currently no evidence of verification, thus they are not code compliant. (See Code Civ. Proc., § 2031.250, subd. (a); see also *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [“unverified responses are tantamount to no responses at all.”].) Moreover, Defendant asserts that Plaintiff’s request for all ingredients in a product constitutes Plaintiff alleging a new theory based on inactive ingredients. Additionally, Defendant argues that requested information (inactive ingredient information) is not relevant to any claim. However, Plaintiff contends they have not changed their theory (false advertising). Plaintiffs further contend that its focus on the chemical UV filters does not preclude it from seeking discovery as to inactive ingredients because information regarding all the ingredients in the products is all relevant to Plaintiff’s claims.

While the claims arise from the active UV ingredients in the products, the Court agrees that the complete formulation is relevant to Plaintiff’s ability to ascertain the portion of each active ingredient. Thus, the fact that the Complaint does not identify specific inactive ingredients does not preclude Plaintiff’s discovery requests. The formula function page attached to the declaration of Christopher Judge in support of the Reply, shows all the ingredients included in the subject project, not just the active ingredients. (See Judge Decl., ¶ 7,

Exh. 2.) Thus, the Court finds that the inactive ingredient information is relevant to Plaintiff's case. Defendant fails to justify any other objections.

Moreover, Defendant has not stated that no other responsive documents exist, in fact, in the second amended response, Defendant states that it has conducted a reasonable inquiry and it will produce any missing labels by the time the instant motion is heard by the Court. (See Opp., 6:25-27.) However, RFP No. 7 requests documents regarding the formulation of the subject products, not just information contained on the label. Therefore, it appears production of the formula documents is proper.

Based on the foregoing, Plaintiff establishes good cause to support further responses and Defendant fails to justify its objections. (See *Kirkland, supra*, 95 Cal.App.4th at p. 98.) To the extent Defendant withholds responsive documents subject due to privilege, a protective order is in place so that any confidential and trade secret information is protected from disclosure. (Opp., p. 7:8-9.)

Accordingly, Plaintiff's motion is GRANTED and Defendant shall provide code compliant responses to RFP No. 7 within 20 days of this order.

XX. CONCLUSION

Plaintiff's motion to compel further responses is GRANTED and Defendant shall provide code compliant responses within 20 days of this order.

The Court will prepare the order.

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Calendar Line 5

Case Name: *Shivaie, et al. v. Elwyn, et al.*

Case No.: 21CV382581

This is a putative class and Private Attorneys General Act (“PAGA”) action. Plaintiffs Pennies M. Shivaie and Lala Bassam (collectively, “Plaintiffs”) alleged defendants Elwyn, Elwyn California, and The Elwyn Foundation (collectively, “Defendants”) committed various wage and hour violations.

Before the Court is Plaintiffs’ motion for final approval of settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

XXI. BACKGROUND

According to the allegations of the operative second amended complaint (“SAC”), Defendants failed to: pay overtime wages; pay minimum wages; provide compliant meal periods or compensation in lieu thereof; provide compliant rest periods or compensation in lieu thereof; pay full wages; furnish accurate wage statements; timely pay wages; and reimburse necessary business expenses. (SAC, ¶¶21-30.)

Plaintiff Shivaie initiated this action on May 28, 2021, with the filing of the complaint and on November 22, 2021, Plaintiff Shivaie filed the first amended complaint, which asserted the following causes of action: (1) failure to pay overtime wages; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) waiting time penalties; (6) wage statement violations; (7) failure to timely pay wages; (8) failure to indemnify; (9) unfair competition; and (10) civil penalties under PAGA. On April 4, 2023, Plaintiffs filed the operative SAC, which asserted the same claims and added Plaintiff Bassam to the action. On February 6, 2026, the Court issued its order, which granted Plaintiffs’ motion for preliminary approval.

Plaintiffs now move for an order finally: certifying the settlement class; approving Plaintiffs as Class representatives; approving David D. Bibiyan and Vedang J. Patel of Bibiyan Law Group as Class Counsel; approving the terms set forth in the Class and PAGA Settlement Agreement (the “Settlement”); approving settlement administration costs to ILYM Group, Inc. (“ILYM”); approving Plaintiffs’ service awards; approving attorneys’ fees and costs’ approving PAGA penalties; and entering final judgment.

XXII. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

B. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba*, *supra*, 91 Cal.App.4th at pp. 244–245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of relevant factors, depending on the circumstances of each case. (*Wershba*, *supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the "proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned." (*Ibid.*, citation and internal quotation marks omitted.) The trial court also must independently confirm that "the consideration being received for the release of the class members' claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation." (*Kullar*, *supra*, 168 Cal.App.4th at p. 129.) Of course, before performing its analysis the trial court must be "provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise." (*Id.* at pp. 130, 133.)

C. PAGA

Labor Code section 2699, subdivision (l)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The court's review "ensur[es] that any negotiated resolution is fair to those affected." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) Seventy-five percent of any penalties recovered under PAGA go to the Labor and Workforce Development Agency (LWDA), leaving the remaining twenty-five percent for the aggrieved employees. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 2022 U.S. LEXIS 2940.)

Similar to its review of class action settlements, the Court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) It must make this assessment "in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." (*Id.* at p. 77; see also *Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 ["when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public ..."], quoting LWDA guidance discussed in *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O'Connor*).)

The settlement must be reasonable in light of the potential verdict value. (See *O'Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-CV-02198-EMC) 2016 WL 5907869, at *8–9.)

XXIII. SETTLEMENT CLASS

Plaintiffs request certification of the following Class for settlement purposes.

All persons currently or formerly employed by Defendant, either directly or through any subsidiary, in California, as a non-exempt, hourly-paid employee who worked for Defendant during the Class Period [January 1, 2020 through March 1, 2025].

Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court”

Section 382 requires the plaintiff to demonstrate by a preponderance of the evidence: (1) an ascertainable class and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, 332 (*Sav-On Drug Stores*)). “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.)

In the settlement context, “the court’s evaluation of the certification issues is somewhat different from its consideration of certification issues when the class action has not yet settled.” (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 93.) As no trial is anticipated in the settlement-only context, the case management issues inherent in the ascertainable class determination need not be confronted, and the court’s review is more lenient in this respect. (*Id.* at pp. 93–94.) But considerations designed to protect absentees by blocking unwarranted or overbroad class definitions require heightened scrutiny in the settlement-only class context, since the court will lack the usual opportunity to adjust the class as proceedings unfold. (*Id.* at p. 94.)

At preliminary approval, the Court provisionally certified the above-described Class, and it does not find any reasons to depart from that ruling at this time. Consequently, the Court will certify the Class for settlement purposes as requested.

XXIV. TERMS AND ADMINISTRATION OF SETTLEMENT

The non-reversionary gross settlement amount is \$3,231,624.52.⁶ Attorneys' fees of up to 35%, which is approximately \$1,131,068.58, litigation costs of up to \$85,000, and settlement administration costs of up to \$15,350. \$150,000 will be allocated to PAGA penalties, 75% (\$112,500) will be paid to the LWDA, with the remaining 25% (\$37,500) dispensed, on a pro rata basis to "Aggrieved Employees," who are defined as "all persons currently or formerly employed by Defendant, either directly or through any subsidiary, in California, as a non-exempt, hourly-paid employee who worked for Defendant during the PAGA Period [the period from January 1, 2020, through the end of the Class Period.]" Plaintiffs will seek Class Representative service awards for \$10,000 each—totaling \$20,000.

The net settlement amount—approximately \$1,881,169.88—will be allocated to members of the settlement Class, who are defined as "all persons currently or formerly employed by defendant Elwyn California, either directly or through any subsidiary, in California, as a non-exempt, hourly-paid employee who worked for Defendant during the periods from January 1, 2020, through March 1, 2025." For tax purposes, 20% of individual class payments will be allocated to wages and 80% will be allocated to interests and penalties and are not subject to wage withholdings. Funds associated with checks uncashed after 180 days will be transmitted to Legal Aid at Work.

In exchange for settlement, Class Members who do not opt out will release:

[A]ll claims that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint including: (1) failure to pay overtime; (2) failure to pay minimum wages; (3) failure to provide meal breaks, (4) rest breaks; (5) waiting penalties; (6) wage statement violations; (7) failure to timely pay wages; (8) failure to indemnify; (9) unfair competition.⁷

Aggrieved Employees, who consistent with the statute will not be able to opt out of the PAGA portion of the settlement, will release:

[A]ll claim for PAGA penalties that were alleged, or reasonably could have been alleged, based on the facts stated in the Operative Complaint or the PAGA notices.

The notice period has now been completed. Nick Castro ("Castro"), a case manager for settlement administrator ILYM, submitted a declaration in support of the instant motion. Castro states that on April 1, 2026, ILYM received the Class data from defense counsel. On April 6, 2026, the Class notice packets were mailed. As of the date of Castro's declaration, 205 Class notice packets have been returned as undeliverable. ILYM performed a skip trace on the returned Class notice packets as none of them were returned with a forwarding address. 187 updated addresses were obtained and ILYM accordingly re-mailed the Class notice packets. As a result, a total of 18 Class notice packets have been deemed undeliverable.

⁶ The number of workweeks was 243,773.51, which exceeds the 241,500 workweeks threshold, thus, the gross settlement amount was increased from \$3,000,000.

⁷ Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period.

The deadline to respond was May 21, 2026. As of the date of Castro's declaration, ILYM has received 3 requests for exclusion, 0 objections, and 0 disputes. Consequently, there are 1,976 participating Class members, representing approximately 99.85% of the Class. The average individual payment is \$952.01, with the highest being \$2,084.57, and the lowest being \$2.24. The average PAGA payment is \$18.95, with the highest being \$41.25.

Plaintiff requests \$15,350 for administration costs. This request is supported by Castro's declaration. Thus, the amount is reasonable and therefore, it is approved.

At the preliminary approval, the Court found that the proposed settlement provides a fair and reasonable compromise to Plaintiffs' claims. It finds no reason to depart from these findings now, especially considering that there are no objections. Therefore, the Court finds that the Settlement is fair and reasonable for the purposes of final approval.

XXV. ATTORNEYS' FEES, LITIGATION COSTS, AND PLAINTIFFS' SERVICE AWARD

Class Counsel seeks a fee award of \$1,131,068.58 or 35% of the gross settlement amount, which is not an uncommon contingency fee in a wage and hour class action. Class Counsel provides a lodestar figure of \$796,584, based on 1,161.70 hours of work at billing rates from \$95 to \$1,100 per hour, resulting in a multiplier of 1.41. This is within the range of multipliers that courts typically approve. (See *Wershba*, *supra*, 91 Cal.App.4th at p. 255 ["[m]ultipliers can range from 2 to 4 or even higher"]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court's own survey of large settlements funding a range of 0.6-19.6, with most (20 to 24, or 83%) from 1.0-4.0 and a bare majority (13 of 24, or 54%) in the 1.5-3.0 range"].)

"While the percentage method has been generally approved in common fund cases, courts have sought to ensure the percentage fee is reasonable by refining the choice of a percentage or by checking the percentage result against the lodestar-multiplier calculation." (*Laffitte v. Robert Half Intern, Inc.* (2016) 1 Cal.5th 480, 495 (*Laffitte*).) Applying the latter approach,

[T]he percentage-based fee will typically be larger than the lodestar based fee. Assuming that one expects rough parity between the results of the percentage method and the lodestar method, the difference between the two computed fees will be attributable solely to a multiplier that has yet to be applied. Stated another way, the ratio of the percentage-based fee to the lodestar-based fee implies a multiplier, and that implied multiplier can be evaluated for reasonableness. If the implied multiplier is reasonable, then the cross-check confirms the reasonableness of the percentage-based fee; if the implied multiplier is unreasonable, the court should revisit its assumptions. (*Laffitte*, *supra*, 1 Cal.5th at p. 496, quoting Walker & Horwich, *The Ethical Imperative of a Lodestar Cross-check: Judicial Misgivings About "Reasonable Percentage" Fees in Common Fund Cases* (2005) 18 Geo. J. Legal Ethics 1453, 1463.) As described by the California Supreme Court, "[i]f the multiplier calculated by means of a lodestar crosscheck is extraordinarily high or low, the trial court should consider whether the percentage used should

be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Laffitte, supra*, 1 Cal.5th at 505.)

Here, the multiplier sought by Class Counsel is within the range California courts typically award, and it is supported by the percentage cross-check and Class Counsel’s declaration. (See Declaration of David Bibiyan (“Bibiyan Decl.”), ¶ 16-19; Declaration of Brandon Chang (“Chang Decl.”), ¶ 41-45.) Thus, the Court finds Class Counsel’s requested fee award is reasonable.

Class Counsel also seeks \$34,036.06 in litigation costs, which is below the \$85,000 allowed for in the Settlement. The request is supported by Class Counsel’s declaration. (See Bibiyan Decl., ¶ 22; Chang Decl., ¶ 46.) This amount is reasonable and thus, it is approved.

Plaintiffs requests Class Representative Enhancement payment of \$10,000 each—totaling \$20,000.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation. These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted.) Incentive awards are particularly appropriate where a plaintiff undertakes a significant reputational risk in bringing an action against an employer. (*Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29.)

Plaintiff Shivaie attests to spending at least 25 hours on this matter, which includes communication with counsel and providing information and documentation to support claims. Similarly, Plaintiff Bassam attests to spending at least 25 hours and details similar efforts. Given the duration of the litigation, the time spent on this litigation, and the efforts detailed in Plaintiffs’ respective declarations, the Court finds Plaintiffs are entitled to service awards and the amounts requested are reasonable. Thus, Plaintiffs’ respective requests are approved.

XXVI. CONCLUSION

In accordance with the above, IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Plaintiffs’ motion for final approval is GRANTED. The following Class is certified for settlement purposes only:

All persons currently or formerly employed by Defendant, either directly or through any subsidiary, in California, as a non-exempt, hourly-paid employee who worked for Defendant during the Class Period.

Judgment will be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiff and the members of the Class will take from the operative complaint only the relief set forth in the settlement agreement and this order and judgment. Pursuant to Rule 3.769(h) of the California Rules of Court, the Court will retain jurisdiction over the parties to enforce the terms of the settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **April 1, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, class counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted pursuant to Code of Civil Procedure section 384, subdivision (b); the status of any unresolved issues; and any other matters appropriate to bring to the Court's attention. Counsel shall also submit an amended judgment as described in Code of Civil Procedure section 384, subdivision (b). Counsel may appear at the compliance hearing remotely.

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Calendar Line 6

Case Name: *Hone Capital LLC v. Wu et al.*

Case No.: 20CV369179 (consolidated with Case No. 20CV369308)

This consolidated action arises from a series of business disputes among several parties. Plaintiff/Cross-Defendant Hone Capital LLC (“Hone Capital” or “Hone” or “Plaintiff”), a subsidiary of China Science & Merchants Investment Management Group Co, LTD (“CSC Group”), has sued several parties for fraud and breach of fiduciary duty, among other things. Hone Capital’s claims arise from: (1) alleged embezzlement and double-dealings of Defendants/Cross-Complainants Veronica Wu and Purvi Gandhi, former employees of Hone Capital; and (2) supposed assistance in these wrongful actions by various outside parties hired by or doing business with Wu and Gandhi, either directly or through entities controlled by Wu and Gandhi.⁸ Wu and Gandhi have each filed cross-claims against Hone Capital for unpaid wages and profit sharing.

Before the Court is the motion to be relieved as counsel by counsel for CSC Parties⁹, Marc Feinstein (“Feinstein”), Amy S. Park (“Park”), Sherin Parikh (“Parikh”), Andrew Weisberg (“Weisberg”), Alexander Wolter (“Wolter”), and O’Melveny & Myers LLP (“O’Melveny”) (collectively, “Counsel”), which is not opposed. For reasons discussed below, the Court GRANTS the motion.

I. MOTION TO BE RELIEVED AS COUNSEL

A. Legal Standard

Motions to be relieved as counsel are technical and governed by Rules of Court, rule 3.1362 (“Rule 3.1362”). Notice and motion must be directed to the client on Judicial Council Form MC-051. No memorandum is required. (Rule 3.1362(a) & (b)). Counsel must provide a declaration on Judicial Council Form MC-052 stating “in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1).” (Rule 3.1362(c)).

The notice of motion and motion, the declaration, and the proposed order must be served on the client and all parties “by personal service, electronic service, or mail.” (Rule 3.1362(d)).

If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

(A) The service address is the current residence or business address of the client; or

⁸ Wu has changed her name to Veronica Breckenridge, however, the Court will refer to her as Wu for the sake of clarity and consistency. No disrespect is intended. (See *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1136, fn. 1.)

⁹ “CSC Parties” include Hone Capital LLC; China Science & Merchants Investment Management Group Co., Ltd.; CSC Technology (Cayman) Ltd.; CSC Genesis Ltd.; Everest Cayman Ltd.; CSC SFR (Cayman) Ltd.; CSC Growth LLC; CSC Angel LLC; Shanghai Shizhen Investments Co., Ltd (erroneously sued as Shanghai Shizhen Ltd.); CSC Evergreen LLC; China Science & Merchants (Hong Kong) Investment Management Co., Ltd.; CSC SV GP Ltd.; SFR US Financing, LLC; SFR US Holdings, LLC; Xiangshuang Shan; Li Li; and Paul Qi Su.

(B) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

(Rule 3.1362(d).)

The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053) and must be lodged with the court with the moving papers. The order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. If no hearing date is presently scheduled, the court may set one and specify the date in the order. After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.

(Rule 3.1362(e).)

B. Discussion

Here, Feinstein submitted his declaration in support of Counsel's motion. He states that the motion is made pursuant to Rules of Professional Conduct Rule 1.16(b)(4) & (5), which provides,

[A] lawyer may withdraw from representing a client if:

(4) the client insists upon taking action that the lawyer considers repugnant or with which the lawyer has a fundamental disagreement;

(5) the client fails substantially to fulfill an obligation to the lawyer regarding the lawyer's services and has been given reasonable warning that the lawyer will withdraw unless the obligation is fulfilled.

(Rules Prof. Conduct, rule 1.16(b)(4) & (5).)

With regard to service, Feinstein states that the CSC Parties were served by electronic mail at their last known addresses with copies of the motion papers served with his declaration. (Feinstein Decl., ¶ (3)(a)(2).) Counsel confirmed within the past 30 days that the address is current that the CSC Parties were served by email to Paul Su and Chenxi Xie, the regular contact people for CSC Parties, at the email addresses they have used to communicate with O'Melveny in the past 30 days. (Feinstein Decl., ¶ (3)(b)(1)(d).) The papers were emailed and mailed the papers to Meng Li an outside corporate transaction counsel for various CSC Parties, who is located in the Bay Area, California using email and mail addresses she confirmed in the past 30 days. (*Ibid.*) This is sufficient to meet the requirements of Rule 3.1362(d)(1)(B).

Counsel has provided a proposed order on the correct judicial counsel form (MC-053). The proposed order indicates that there is a case management conference ("CMC") on September 24, 2026. The Court's docket does not reflect any other scheduled hearing as this action has been stayed in its entirety since October 16, 2025 due to Wu's pending writ of petition and the stay extends to the aforementioned CMC. (Feinstein Decl., ¶ 7.)

Based on the foregoing, Counsel's motion is GRANTED.

II. CONCLUSION

The motion to be relieved as counsel is GRANTED.

The Court will prepare the final order.

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